

WELLS FARGO BANK, N.A. v HARBER

25CF15340

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

This is an action by Wells Fargo Bank, N.A. ("Plaintiff") against Loretta M. Harber ("Defendant") for the collection of a credit card debt in the sum of \$ \$17,978.96. In his Answer, Defendant denied the allegations in the Complaint and raised the affirmative defense that there was no proof of debt.

The Court granted Plaintiff's motion to deem requests for admissions admitted on January 16, 2026.

Now before the Court is Plaintiff's motion for judgment on the pleadings.

I. Legal Standard

A motion for judgment on the pleadings serves the same function as a demurrer but is made after the time for demurrer has expired. (Code Civ. Proc., § 438(c)(2); *Cloud v. Northop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) Except as provided by statute, the rules governing demurrers apply. (*Id.*) The court must accept as true the factual allegations of the complaint and must give them a liberal interpretation. (*Gerawan Farming, Inc., v. Lyons* (2000), 24 Cal. 4th 468, 515-516.) In addition, the court is limited in its consideration to the face of the pleadings or matters entitled to judicial notice. (Code Civ. Proc. § 438(d).)

If the motion is granted in favor of the plaintiff, "it shall be based on the grounds that the complaint states facts sufficient to constitute a cause of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc. §438(c)(3)(a).)

II. Legal Analysis

A breach of contract claim requires: 1) the existence of a contract, 2) plaintiff's performance or excuse for nonperformance, 3) defendant's breach, and 4) the resulting damages to the plaintiff. (*San Mateo Union High Sch. Dist. v. Cnty. of San Mateo*, (2013) 213 Cal. App. 4th 418, 439.) "Where contract language is clear and explicit and does not lead to absurd results, we ascertain intent from the written terms and go no further." (*Shaw v. Regents of Univ. of Cal.*, (1997) 58 Cal. App 4th 44, 53.)

Plaintiff and Defendant entered into a contract for a consumer credit card. (RFA No. 1.) Pursuant to the contract, Plaintiff provided credit and Defendant used that credit to make consumer purchases. (RFA No. 2.) Defendant incurred charges, was provided statements detailing those charges, and did not object or deny that she had incurred those charges. (RFA Nos. 4, 5.) However, Defendant stopped making payments towards the balance on the subject account her last payment was on December 5, 2024. (RFA 7.) Defendant has an unpaid balance on her account of \$17,978.76 (RFA No. 6.)

Plaintiff has carried its burden of demonstrating evidence supporting all the elements of its claim for breach of contract and that there are no affirmative defenses available. Defendant has failed to oppose the motion and makes no argument on her own behalf.

III. Conclusion

Plaintiff's motion for judgment on the pleadings is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted (Proposed) Order and Judgment.

BUTTS v FCA US, LLC, et al

25CV47877

PLAINTIFF'S MOTION TO COMPEL INITIAL DISCLOSURES AND MONETARY SANCTIONS

This is a lemon law matter brought by Plaintiff Alan Butts ("Plaintiff") against FCA US, LLC ("FCA") and Stoneridge Chrysler Jeep Dodge ("Stoneridge.") Now before the Court is Plaintiff's motion to compel production of documents.

I. Background

Plaintiff purchased a 2022 Ram 3500 vehicle on July 21, 2022, for a total sales price of \$117,829.44. Plaintiff filed the Complaint in this action on February 11, 2025. FCA US LLC filed its Answer on May 5, 2025.

Pursuant to California Code of Civil Procedure section 871.26, subdivision (h), FCA was required to provide all mandatory initial disclosures within 60 days of filing its Answer (or by July 4, 2025).

FCA apparently produced the initial disclosures months after the mandatory deadline. However, Plaintiff contends that while FCA made certain disclosures but has failed to provide all the mandatory disclosures and documents. FCA opposes the motion.

II. Legal Standard

Code Civil Procedure section 871.26 provides for expedited discovery procedures in lemon law actions. Specifically, section 871.26(h) provides for the production of the following documents within 60 days of the filing of the responsive pleading: copy of access to a version of the owner's manual for a motor vehicle of the same make, model, and year; any warranties issued in conjunction with the sale of the motor vehicle; sample brochures published for the motor vehicle; the motor vehicle's original invoice, if any, to the selling dealer; sales or lease agreement, if the manufacturer is in possession; motor vehicle information reports, including build documentation, component information, and delivery details; entire warranty transaction history for the motor vehicle; and more.

Code Civil Procedure section 871.26(j)(1) provides, in pertinent part, the following:

Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed